

Sri G K Ravi vs Smt S Prathibha on 29 May, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

-1-

MFA No. 1077 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 29TH DAY OF MAY, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO. 1077 OF 2016 (FC)
BETWEEN:

SRI G. K. RAVI,
S/O KENCHEGOWDA,
AGED ABOUT 46 YEARS,
WORKING AS TEACHER,
HUCHAVVANAHALLI,
DAVANAGERE TALUK,
RESIDING AT GUNDAPURA,
ALAGURU HOBLI, MALAVALLI TALUK,
MANDYA DISTRICT-571421

...APPELLANT

Digitally signed
by BELUR
RANGADHAMA
NANDINI
Location: HIGH
COURT OF
KARNATAKA

(BY SRI P. DHANANJAYA, ADVOCATE FOR
SRI K HANUMANTHARAYAPPA, ADVOCATE)

AND:

SMT S. PRATHIBHA,
W/O G. K. RAVI,
AGED ABOUT 36 YEARS,
RESIDING AT DOOR NO.1075,
MIG 9TH MAIN,
VIVEKANADANAGARA, MYSURU-570023.

...RESPONDENT

(BY SRI K.M.SANATH KUMAR, ADVOCATE)

THIS MFA IS FILED U/S 19(1) OF FAMILY COURTS ACT,
AGAINST THE JUDGMENT AND DECREE DATED 07.11.2015
PASSED IN M.C.NO.294/2009 ON THE FILE OF THE JUDGE,
ADDITIONAL FAMILY COURT, MYSURU, REJECTING THE
PETITION FILED U/S 13(1)(ia)(b) OF HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY,
ANANT RAMANATH HEGDE J., DELIVERED THE FOLLOWING:

JUDGMENT

This is an appeal by the husband/petitioner in M.C.No.294/2009 on the file of the Additional Family Court, Mysuru. The judgment and decree refusing decree of dissolution of marriage under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act') are called in question by the husband by invoking Section 19(1) of the Family Courts Act, 1984.

2. For the sake of convenience, the parties to the proceedings are referred to as husband and wife.

3. It is also relevant to state that the wife had also filed the petition in Crl. Misc. No.438/2009 on the file of the Family Court at Mysuru seeking maintenance for herself as well as her two children. The said petition under Section 125 of the Criminal Procedure Code was allowed in-part directing the husband to pay Rs.10,000/- per month as maintenance and Rs.5,000/- per month to each of the daughters. The petition seeking maintenance and the petition seeking dissolution of marriage are disposed of by common judgment dated 07.11.2015. The judgment in Crl. Misc. No.438/2009 is not in question and has attained finality.

4. Other facts necessary for the adjudication of the case are as under:

The marriage between the parties was solemnised on 04.06.1998. Two children are born from the marriage. The elder son was born in the year 1999 and the younger son in the year 2002. The husband contends that he was working as a teacher in Davanagere taluk. It is further stated that after the birth of the second son, the wife went to her parent's house and started staying with the parents without any justifiable reason. It is also stated that all efforts to bring back the wife failed and the wife failed to discharge her marital obligations. It is alleged that the wife is not cohabiting with the petitioner for more than 7 to 8 years and it is further urged that the wife has refused to look after the mother of the petitioner. Petitioner alleges that the act of the respondent amounts to desertion. It is also stated that the long separation by the wife amounted to cruelty and on these grounds, the petition is filed seeking the dissolution of marriage.

5. The wife contested the matter by filing a statement of objections. The relationship is admitted. And the fact that two children are born from the marriage is also admitted.

However, the allegations of cruelty and desertion leveled against the wife are denied. It is contended by the wife that after the marriage the husband took her to Bengaluru where he was working as a principal in a school. The father of the wife arranged an accommodation for the couple. It is further alleged by the wife that few months later, the husband made the wife live in Mysuru and used to visit the respondent during school vacations. It is further alleged that the husband was insisting the wife to bring dowry and he used to abuse the wife physically.

6. It is the further contention of the wife that the husband got a permanent job in the year 2005 and was posted to Huchchavanahalli, School and the wife thought that the husband would take her to that place but he did not. In the year 2006, the husband insisted that the house property should be transferred in the name of the husband and when the wife refused, he left the wife and the son and did not turn up thereafter. It is also alleged that the husband is having an illicit relationship with a lady. The wife has alleged that the husband has not made any arrangements for the maintenance of the wife as well as his children. Accordingly, the wife contends that there is no cause of action and has prayed for the dismissal of the petition.

7. Before the Court the husband is examined as P.W.1. Two witnesses namely H.K.Ramesh and Rajendra are examined as P.W.2 and P.W.3 and 30 documents are marked as Exhibits P-1 to P-30. The wife is examined as R.W.1 and 31 documents are marked at Ex.R-1 to R-31.

8. The Family Court dismissed the petition seeking dissolution of marriage and allowed the petition seeking maintenance in part. Only the judgment and decree passed by the Family Court dismissing the petition seeking restitution of conjugal rights is questioned before this Court.

9. Heard the learned counsel appearing for the parties and perused the records.

10. Since, the dissolution of marriage is sought on the ground of cruelty and desertion it is necessary to keep in mind the law laid down by the Hon'ble Apex Court in this regard. In the case of Samar Ghosh v. Jaya Ghosh¹ the Apex Court has dealt with the ground of cruelty under Section 13(1) (ia) of Hindu Marriage Act, 1955. The ratio in the said judgment is followed in various cases including the case of Sumon Singh vs Sanjay Singh². The Apex Court in Sumon Singh's case has held as under:

19. XXXXX In the first place, no decree for divorce on one isolated incident can be passed. Secondly, there could be myriad reasons for causing such isolated incident. Merely because both exchanged some verbal conversation in presence of others would not be enough to constitute an act of cruelty unless it is further supported by some incidents of alike nature"

11. As far as the ground relating to desertion under Section 13(1)(ib) is concerned Lachman Utamchand (2007) 4SCC 511 (2017)4 SCC 85 Kiripalani Vs. Meena @ Mota³ which has been

followed in DEBANANDA TAMULI Vs. Kakumoni Katakya⁴ is concerned has held that desertion means the intentional abandonment of the spouse by the other without the consent of the other and without a reasonable cause. It has further been held that the deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. It has also been held that in other words, there should be animus deserendi on the part of the deserting spouse.

12. Learned counsel appearing for the husband submitted that the wife has been residing separately since 2004 and she has no intention to live with the husband and the act of desertion on the wife's part is clearly established. It is also urged by the learned counsel that the wife is having an illicit relationship with a tenant of her father and the same is established by the letter addressed to the said tenant that is produced and proved before the Court. Learned counsel would submit that the illicit relationship of the wife coupled with separation has caused mental cruelty to the husband and the AIR 1964 SC 40 2022 SCC Online SC 187 Family Court erroneously held that the grounds are not established. Accordingly, he has urged to allow the appeal and to grant a decree for the dissolution of the marriage.

13. Learned counsel appearing for the wife defended the impugned judgment and decree. He contends that the wife has established the fact that the husband is having a relationship with a lady and intentionally he is staying away from the company of the wife and he has deserted the wife. He contends that the husband intends to marry the lady with whom he is having an illicit relationship and for this reason, he is leveling false allegations against the wife to seek a decree for the dissolution of the marriage.

14. This Court has considered the contentions raised at the bar and also perused the records including the impugned judgment and decree.

15. The Family Court on appreciation of the material on record has concluded that the husband was not having a permanent job till 2006. It is also taken note of the fact that in the year 2009, the husband issued a notice to the wife calling upon the wife to join him. However, within a month he issued one more notice asking the wife to seek divorce by filing a mutual petition. The evidence on record would reveal that the husband has failed to maintain the wife and his two children. Accordingly, the petition seeking maintenance is allowed and said order has attained finality.

16. The Family Court has also concluded that the allegation against the wife about the alleged illicit relationship of the wife is not substantiated and the same is baseless. The alleged relationship is sought to be established by producing a letter said to have been written by the wife to the tenant of her father. However, the said document was marked subject to the proof and the evidence of the recipient of the said letter. However, the person named Honnagowda who is said to be the recipient of the letter is not examined. The custody of the said letter, which in the normal course of things should be with the addressee, is not properly explained by the husband who produced it before the court. The wife has disputed the said letter. Under the circumstances, the Family Court has concluded that the allegation against the wife is baseless and the same amounts to cruelty on the part of the husband.

- 10 -

17. The Family Court has also taken note of the fact that the wife has produced two documents which according to the wife are the birth records of the children born to the woman with whom the husband is said to be having a relationship. Though the Family Court has not given any finding on the alleged relationship of the husband, considering the circumstances the Family Court has concluded that the husband has failed to establish that the wife has deserted the company of the husband with the intention put an end to the marital relationship. The Family Court has also concluded that the husband has inflicted cruelty on the wife by making false and baseless allegations against her.

18. The unchallenged judgment in Crl. Misc. No.438/2009 would demonstrate that the husband has failed to look after his wife and two minor children. On overall appreciation of the materials on record, this Court is of the view that the plea of cruelty and desertion are not established by producing acceptable materials. The evidence on witnesses examined on behalf of the husband also does not support the plea of cruelty and desertion. This being the position, this court

- 11 -

is in agreement with the reasons assigned by the Family Court in rejecting the petition seeking the dissolution of marriage.

19. For the aforementioned reasons, this Court is of the view that no justifiable grounds are made out to interfere with the judgment and decree passed by the Family Court. Hence the following:

ORDER

(i) Accordingly, the appeal is dismissed.

(ii) The judgment and decree dated 07.11.2015 on the file of the Family Court at Mysuru in M.C.No.294/2009 is confirmed.

Sd/-

JUDGE Sd/-

JUDGE GVP